

Ikbal Hussain v. Managing Director, Madhyanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 September 2018 · WRIT - C No. 28822 of 2018 · **Writ disposed; bill-correctness dispute relegated to clause 6.5.**

HEADNOTE

A consumer disputing the correctness of an electricity bill must use the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court declined to quash a 12 June 2018 bill in writ jurisdiction, directed that a clause 6.5 application filed within 10 days be decided by speaking order within 15 days after hearing, and stayed coercive action for 40 days.

FACTUAL SUMMARY

Ikbal Hussain petitioned the Allahabad High Court to quash an electricity bill dated 12 June 2018 issued by Madhyanchal Vidyut Vitaran Nigam Limited and to stay its operation. The writ was twice adjourned, first at the petitioner's instance and then so the licensee's counsel could take instructions. On 6 September 2018 the Division Bench heard the petition. The grievance was confined to correctness of that bill. The Court did not examine the bill on merits and pointed the consumer to the Supply Code remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A writ petition challenging the correctness of an electricity bill is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The consumer may apply to the appropriate authority under that clause; the authority is to consider and decide the application in accordance with law by a speaking order after opportunity of hearing. Coercive action was stayed for forty days to enable that recourse. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 12.06.2018

Left to the clause 6.5 authority to decide on the merits. ¶ 1